

25NWCV04347 25NWCV04347

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C09%2F04%2F2026

Source SHA-256: 53e2bc7bf1a8e5a9abbaf1d1c6da569bb770507f592076536fbf4a92bc96f8ff

Case Number: 25NWCV04347 Hearing Date: September 4, 2026 Dept: P

MIGUEL GONZALEZ v. AREA

51 KUSTOMS, INC., ET AL.

CASE NO.: 25NWCV04347

HEARING: 09/04/2026 @

9:30 AM

#16

TENTATIVE ORDER

I.

Plaintiff Miguel Gonzalez's motion to
compel Defendant Andre Terrazas's responses to form interrogatories, set one is
GRANTED.

II.

Plaintiff's request for monetary
sanctions against Defendant is GRANTED in the amount of \$712.50.

Moving party to give notice.

Plaintiff Miguel Gonzalez (Plaintiff) moves to compel
Defendant Andre Terrazas (Defendant) to produce responses to form
interrogatories (FROGs), set one.

Background

On December 8, 2025, Plaintiff filed this breach of contract action against Defendants Area 51 Kustoms, Inc., Andrea Terrazas, and Does 1 through 10. The form complaint alleges that Defendant breached a contract with Plaintiff to restore Plaintiff's vehicle and wrongfully detained Plaintiff's vehicle at Area 51 Kustoms, Inc. The complaint asserts two causes of action: (1) breach of contract and (2) fraud.

On April 9, 2026, default was entered as to Area 51 Kustoms, Inc.

Legal Standard

A party to whom interrogatories are propounded must respond within 30 days of service of the interrogatories. (Code Civ. Proc., § 2030.260.) If a party fails to serve a timely response, the party propounding interrogatories may move for an order compelling responses. (Code Civ. Proc., § 2030.290.) Additionally, "the party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product." (Code Civ. Proc., § 2030.290.)

Discussion

Plaintiff moves to compel Defendant to provide responses to FROGs, set one.

Plaintiff served Defendant with FROGs, set one, on April 23, 2026, making responses due by May 23, 2026. (Gomez Decl., ¶ 3.) Defendant did not respond to Plaintiff's meet and confer letter requesting responses by July 1, 2026, and had not provided responses as of the date Plaintiff filed this motion. (Gomez Decl., ¶¶ 6-8.)

The Court notes that Defendant, in pro per, did not file an opposition, but rather filed a declaration and his responses to requests for production of documents. Defendant's declaration appears to be related to the facts of this case rather than to the discovery requests. Additionally, while Defendant provided its responses to requests for production to the Court, which is not required, these responses do not address the FROGs at issue. (See, gen.,

Code Civ. Proc., § 2030.280, subd. (a) ["interrogatories and the response thereto shall not be filed with the court."].)

Here, Plaintiff establishes that Defendant has failed to provide timely responses to FROGs, set one. (See Code Civ. Proc., § 2030.290.)

Accordingly, Plaintiff's motion to compel Defendant's responses to form interrogatories, set one is GRANTED.

Defendant Andre Terrazas is ORDERED to provide verified responses, without objections, to form interrogatories, set one, within 30 days of this Order. This date may be extended pursuant to agreement between the parties.

Sanctions

Plaintiff moves for monetary sanctions against Defendant for the failure to timely respond to FROGs, set one.

"The court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c).)

The Court finds monetary sanctions warranted against Defendant because Defendant failed to provide timely responses without substantial justification. Plaintiff requests \$1,365 reflecting Plaintiff's counsel's hourly rate of \$435, 1.5 hours to draft this motion, review the opposition, and draft a reply, 1.5 hours to attend the hearing, and a \$60 filing fee. (Gomez Decl., ¶ 9.) The Court finds this amount excessive given the simplicity of this motion and because the motion is not opposed. The Court finds a total of 1.5 hours with the filing fee reasonable.

Accordingly, Plaintiff's request for attorney's fees is GRANTED in the amount of \$712.50.

Defendant is ORDERED to pay this amount within 30 days of this Order. This date may be extended pursuant to agreement between the

parties.